Consider and Adopt Revisions to Board Policies FD Local Admissions and FM Local Student Activities Declining to Grant Non-Enrolled Students the Opportunity to Participate in UIL Activities as Required by SB 401

Recommendation:
That the Conroe Independent School District Board of Trustees adopt the recommended revisions to Board Policies FD Local Admissions and FM Local Student Activities denying students who are not enrolled in Conroe ISD the opportunity to participate in UIL activities as submitted by Dr. Chris Povich, Assistant Superintendent of High Schools, and as recommended by Dr. Ted Landry, Interim-Superintendent.

Explanation:
SB 401, which becomes effective at the start of the 2025-2026 school year, requires public school districts, like CISD, to allow non-enrolled students who otherwise meet UIL eligibility criteria to have the same opportunity to participate in UIL activities as students enrolled in CISD. School districts who do not want non-enrolled students to participate in UIL activities in their districts must adopt policies that do not permit non-enrolled students such opportunities. The policies must be adopted prior to the start of the 2025-2026 school year. The bill also allows grants to students who reside in school districts that do not allow non-enrolled students to participate in UIL activities, the right to participate in UIL activities in the closest school district that does grant non-enrolled students the opportunity to participate in UIL activities.

Because CISD schools have large student enrollments that already limit the opportunities for enrolled students to participate in UIL activities, administration recommends the Board approve the recommended revisions to Policies FD and FM, prohibiting students not enrolled in CISD from participating in UIL activities.

Policy Reference: BF Local; SB 401

Recommended by:	Submitted by:
Dr. Ted Landry *Interim Superintendent of Schools*	Dr. Christopher Povich *Assistant Superintendent of High Schools*

PROPOSED REVISIONS

Persons Age 21 and Over

The District shall not admit into its public schools any person age 21 or over unless otherwise required by law.

Registration Forms

The student's parent, legal guardian, or other person having lawful control shall annually complete registration forms. A student who has reached age 18 shall be permitted to complete these forms.

Proof of Residency

In accordance with administrative procedures, the parent, guardian, or other person having lawful control of the student under order of a court shall present proof of residency. The District may investigate stated residency as necessary.

Minor Living Apart

Person Standing in Parental Relation

A minor student residing in the District but whose parent, guardian, or other person having lawful control under a court order does not reside in the District shall present a power of attorney or an authorization agreement as provided in Chapter 34 of the Family Code assigning responsibility for the student in all school-related matters to an adult resident of the District.

Misconduct

A minor student living apart who has engaged in misconduct that results in any of the consequences found in Education Code 25.001(d) shall not be permitted to attend a District school.

Exceptions

Based on an individual student's circumstance, the Superintendent shall have authority to grant exceptions to the requirement for a power of attorney or authorization agreement and to the exclusion for misconduct.

Extracurricular Activities

The Superintendent shall determine whether a minor student living apart is present in the District for the primary purpose of participating in extracurricular activities.

Students Not Enrolled

A student enrolled in a private school, including a homeschool, shall not be eligible for concurrent enrollment in the District nor for participation in curricular or extracurricular activities. [See EEL and FM]

Nonresident Student in Grandparent's After-School Care

The parent and grandparent of a nonresident student requesting admission under Education Code 25.001(b)(9) shall provide to the Superintendent the required information on the grandparent's residency and complete a form provided by the District describing the extent of after-school care to be provided by the grandparent.

The Superintendent shall have authority to approve or deny such admissions requests in accordance with criteria approved by the Board.

"Accredited" Defined

For the purposes of this policy, "accredited" shall be defined as accreditation by TEA, an equivalent agency from another state, or an

accrediting association recognized by the commissioner of education.

Grade-Level Placement

Accredited Schools

The parent, guardian, or other person having lawful control of a student enrolling in a District school from an accredited public, private, or parochial school shall provide evidence of the prior schooling outside the District. The student shall be placed initially at the grade level reached elsewhere, pending observation by the classroom teacher, guidance personnel, and the principal. On the basis of these observations and results of tests that may be administered by appropriate District personnel, the principal shall determine the final grade placement.

Nonaccredited Schools

A student enrolling in a District school from a nonaccredited public, private, or parochial school, including a homeschool, shall be placed initially at the discretion of the principal, pending observation by classroom teachers, guidance personnel, and the principal. Criteria for placement may include:

1. Scores on achievement tests and/or locally developed assessments, which may be administered by appropriate District personnel.
2. Recommendation of the sending school.
3. Prior academic record.
4. Chronological age and social and emotional development of the student.
5. Other criteria deemed appropriate by the principal.

Transfer of Credit

Accredited Texas Public Schools

Credit toward state graduation requirements earned in an accredited public school district in Texas shall be transferable and recognized by the District.

Other Accredited or Nonaccredited Schools

Before recognizing credit in a course earned in an accredited nonpublic school, an accredited school outside of Texas, or a nonaccredited school, appropriate personnel shall evaluate a student's records and transcript. The District may require the student to demonstrate mastery of the content or use alternative methods to verify course content for the award of credit.

Transition Assistance

In accordance with law, when a student who is identified as homeless or in substitute care enrolls in the District, the District shall assess the student's available records and other relevant information to ensure credit, including proportionate credit, is awarded appropriately for all subjects and courses taken prior to enrollment.

[See EI]

Withdrawal

A parent or guardian wishing to withdraw a minor student shall present a signed statement that includes the reason for the withdrawal. A student who is 18 or older may submit a withdrawal statement without a parent's or guardian's signature.

[For District withdrawal of students no longer in attendance, see FEA(LOCAL).]